IN THE SUPREME COURT OF MISSISSIPPI

No. 2020-AD-00001-SCT

IN RE: MOTION FOR EMERGENCY ORDER RELATED TO COVID-19

MOTION FOR TEMPORARY ADOPTION OF RULE TO THE UNIFORM RULES OF PROCEDURE FOR JUSTICE COURT IMPOSING A MORATORIUM ON JUDICAL PROCEEDINGS OF EVICTION AGAINST RESIDENTIAL TENANTS, OR, IN THE ALTERNATIVE, PETITION FOR EXTRAORDINARY WRIT IMPOSING MORATORIUM ON RESIDENTIAL EVICTIONS, DUE TO THE OUTBREAK OF CORONAVIRUS (COVID-19)

William B. Bedwell (MSB No. 108500)
Staff Attorney
Mississippi Center for Justice
963 Division Street
Biloxi, MS 39530
228-273-1596 (ph)
228-435-7285 (fax)
wbedwell@mscenterforjustice.org

COMES NOW, the Mississippi Center for Justice and, in accordance with Rule 27(t) of the Mississippi Rules of Appellate Procedure, and in light of the previously unprecedented national and state emergencies due to the outbreak of Coronavirus (COVID-19), files this MOTION for temporary adoption of a rule to the Uniform Rules of Procedure for Justice Court imposing a moratorium on all judicial proceedings of evictions against residential tenants, and prohibition on charging late fees related to nonpayment of rent, or in the alternative, files this, in accordance with Rule 21(e) of the Mississippi Rules of Appellate Procedure, as a PETITION FOR EXTRAORDINARY WRIT respectfully requesting that the Court impose a moratorium on all judicial proceedings of eviction against residential tenants, and prohibition on charging fees related to nonpayment of rent. In support of this Petition, the petitioner would show that:

1. Mississippi Rules of Appellate Procedure Rule 27(t) requires, "All applications concerning the adoption, repeal, or amendment of the … Uniform Rules of Procedure for Justice Court, … and all other rules affecting … the administration of the courts in Mississippi shall be filed in the Supreme Court."

2. Mississippi Rules of Appellate Procedure Rule 21(e) requires, "Application for extraordinary writs other than those provided for in subdivisions (c) and (d) of this rule shall be made by petition filed with the clerk of the Supreme Court[.]"

3. On March 13, 2020, the President of the United States declared a national emergency due to the outbreak of Coronavirus (COVID-19).

4. On March 14, 2020, The Governor of the State of Mississippi declared a state emergency due to the outbreak of Coronavirus (COVID-19).

5. This honorable Court, through its emergency orders, "has recognized that the national and state emergencies presented by Coronavirus (COVID-19) require appropriate measures to protect the health and safety of the citizens of this State." Emergency Administrative Order-6, No. 2020-AD-00001-SCT (Miss. Mar. 24, 2020).

6. This Court has also directed that individual judges "have discretion to control their general dockets" and authorized trial courts to exercise "their sound discretion in extending deadlines, rescheduling hearings and trials." Administrative Order, No. 2020-AD-00001-SCT (Miss. Mar. 13, 2020).

7. This Court detailed its emergency administrative orders were to "minimize public health risks from coronavirus (COVID-19)." Administrative Order, No. 2020-AD-00001-SCT (Miss. Mar. 13, 2020).

8. On April 1, 2020, the Governor of the State of Mississippi declared a shelter in place order would come into effect on April 3, 2020, which suspended residential evictions. See attached Exhibit 1: Executive Order No. 1466.

9. The Governor's order is set to expire at 8 a.m. April 27, 2020.

10. Petitioner appealed to the Governor by letter on April 2 to extend the state moratorium to be consistent with the federal moratorium so that this emergency motion would not be necessary. Because the Governor has not indicated any intention to do so three days before the moratorium is scheduled to expire, Petitioner felt bound to file this emergency motion to get the needed relief. See attached Exhibit 2: MCJ Letter to Governor.

11. The Coronavirus Aid, Relief, and Economic Security Act ("CARES Act"), was signed into law by Congress on March 27, 2020, and instituted a moratorium on evictions for nonpayment of rent, and prohibits charging fees related to nonpayment of rent for 120 days (through July 27, 2020) on specific covered properties. These covered properties include those involved in federal programs administered by the U.S. Department of Housing and Urban Development, the U.S. Department of Agriculture, and the U.S. Department of Treasury.[1]

12. The inconsistent Federal and State moratoriums likely will create confusion for Mississippi Judges presiding over eviction matters, as well as for landlords and tenants.

13. The CARES Act provides additional emergency service grant funds to states and provides more flexibility for the use of other emergency funds being provided to states, which may be used to provide emergency rental assistance payments for tenants suffering job loss or loss of income due to COVID-19.

14. The aforementioned potential sources of funds for rental assistance payments are not yet operational in Mississippi, leaving a gap between the Governor's order and possible future relief for tenants.

[1]Coronavirus Aid, Relief, and Economic Security Act, H.R. 748, 116th Cong., 2d Sess. (2020) (enacted) at Sec. 4024(b): https://www.congress.gov/bill/116th-congress/house-bill/748

15. To date, forty-one (41) states and the District of Columbia have instituted orders effectively preventing residential evictions from taking place.

16. Of those states, twenty (20) have put in place moratoriums specifically prohibiting residential evictions.

17. The Supreme Court of Texas issued an Emergency Order on March 19, 2020, prohibiting residential evictions, and on April 6, 2020 extended the prohibition through April 30, 2020. See attached Exhibit 3: Fourth Emergency Order Regarding the COVID-19 State of Disaster, Misc. Docket No. 20-9045 (Tex. 2020); & See attached Exhibit 4: Ninth Emergency Order Regarding the COVID-19 State of Disaster, Misc. Docket No. 20-9052.

18. In 2019, there were three hundred fifty-one thousand eight hundred and sixty-five (351,865) households in Mississippi which rented their housing; thirty-two percent (32%) of Mississippians were renters; and the average hourly wage of renters in Mississippi was eleven dollars and eighty-one cents ($11.81).[2]

19. As the Governor pointed out, when extending his shelter in place order, an estimated one hundred and thirty thousand (130,000) Mississippians have filed for unemployment insurance since the COVID-19 outbreak, representing a fourteen thousand percent increase (14,000%) in claims.[3] Only eight thousand four hundred (8,400) Mississippians were receiving unemployment on average in the weeks prior to March 15, 2020.[4] For further comparison, in the last full week of March 2020 alone, 30,946 Mississippians filed for unemployment, higher than the previous state record of 21,215 in one week, which occurred during September 2005, following the aftermath of Hurricane Katrina.[5]

20. The number of Mississippians attempting to file for unemployment insurance is so

[2]National Low Income Housing Coalition. Out of Reach 2019: Mississippi: https://reports.nlihc.org/oor/mississippi

[3]Mississippi Today: “We are still in the eye of the storm”: Governor Reeves extends shelter in place order, reopens lakes and beaches. Harrison, B. April 17, 2020: https://mississippitoday.org/2020/04/17/we-are-still-in-the-eye-of-the-storm-reeves-extends-shelter-in-place-order-reopens-lakes-and-beaches/

[4]COVID-19 and unemployment in Mississippi: weekly updates. Wolfe, A. April 9, 2020: https://mississippitoday.org/2020/04/09/covid-19-and-unemployment-in-mississippi-weekly-updates/

[5]Mississippi Today: Mississippi’s record-breaking unemployment claims spike 17,000% in two weeks of COVID-19. Wolfe, A. April 2, 2020: https://mississippitoday.org/2020/04/02/mississippis-record-breaking-unemployment-claims-spike-1700-in-two-weeks-of-covid-19/

high, the State's hotline and website are being overwhelmed with traffic.[6] While many people will eventually receive unemployment benefits, enhanced by payments under the federal stimulus bills, they are unable to pay their rent until the system is able to process applications and begin making payments.

21. On March 17, 2020 all Mississippi casinos closed upon order of the Mississippi Gaming Commission, effectively laying off and/or negatively affecting up to ten thousand four hundred (10,400) employees at the Gulf Coast casinos and sixteen thousand (16,000) employees at casinos statewide.[7]

22. The Nissan Canton plant has laid off four thousand (4,000) workers in the wake of the virus.[8]

23. Since the Governor's shelter in place order, even many of those who have not lost their jobs can be expected to experience a decrease in household income.

24. In these extraordinary circumstances presented by Coronavirus (COVID-19), it is paramount that the Court use its authority to prevent the expected and unprecedented rise in Mississippians being made homeless from evictions and to ensure clear uniformity of justice in landlord-tenant matters.

25. This Court has the "inherent authority to adopt rules of practice, procedure, and evidence to promote justice, uniformity, and the efficiency of the courts." Newell v. State, 308 So. 2d 71 (Miss 1975).

26. Additionally, the Chief Justice is the chief administrative officer of all courts in the state.

27. Uniform Rules of Procedure for Justice Court Rule 1.11 "Additional Rules" provides, "No rule of procedure, local or otherwise, shall be adopted without the approval of the Mississippi Supreme Court."

---

[6] Clarion Ledger: Mississippi loosens unemployment benefits for COVID-19. But it's unclear who will qualify. Ramseth, L. March 23, 2020: https://www.clarionledger.com/story/news/2020/03/23/coronavirus-unemployment-mississippi-issues-conflicting-guidelines/289809l001/

[7] Sun Herald: All Mississippi Coast casinos are closing because of coronavirus pandemic. Perez, M. March 16, 2020: https://www.sunherald.com/news/coronavirus/article241212746.html

[8] Mississippi Today: Nissan Canton Plant lays off 4,000 workers to slow coronavirus spread. Wolfe, A. April 6, 2020: https://mississippitoday.org/2020/04/06/nissan-canton-plant-lays-off-4000-workers-to-slow-coronavirus-spread/

28. Due to the emergency and time-sensitive nature of the COVID-19 disaster and this request, Petitioner respectfully requests the Court dispense with the discretionary notice and comment period under M.R.A.P. Rule 27(f).

29. Also due to the emergency and time-sensitive nature of the COVID-19 disaster and this request, Petitioner additionally respectfully requests that if the Court view this as a Petition for Extraordinary Writ, the Court dispense with any requirement to first seek redress "in a trial court as it would be burdensome and unwieldly for Petitioners to seek relief in all 82 counties during the COVID-19 outbreak.

30. In accordance with aforementioned inherent authority and capacity, Petitioner respectfully requests that this Court issue an Emergency Administrative Order temporarily adopting a rule to the Uniform Rules of Procedure for Justice Court imposing a temporary moratorium on all judicial proceedings of evictions against residential tenants, and prohibition on charging late fees related to nonpayment of rent, or in the alternative that this Court issue an Extraordinary Writ, directed to all Justice Court Judges of this State, imposing a moratorium on all judicial proceedings of eviction against residential tenants, and prohibition on charging fees related to nonpayment of rent, either set to expire on July 27, 2020 (coinciding with the end date of the CARES Act's eviction moratorium), or, in the event the CARES Act's eviction moratorium is extended, the extended date therein, whichever is later. See attached Exhibit 5: Proposed Temporary Rule.

WHEREFORE, PREMISES CONSIDERED, Petitioner Mississippi Center for Justice respectfully requests that this Court enter an Emergency Administrative Order temporarily adopting a rule to the Uniform Rules of Procedure for Justice Courts imposing a temporary moratorium on all judicial proceedings of evictions against residential tenants, and prohibition on charging late fees related to nonpayment of rent, through July 27, 2020, or later date to be consistent with any extension of the CARES Act's eviction moratorium, or in the alternative, issue an Extraordinary Writ, directed to all Justice Court Judges of this State, imposing a temporary moratorium on all judicial proceedings of eviction against residential tenants, and prohibition on charging fees related to nonpayment of rent, through July 27, 2020, or later date to be consistent with any extension of the CARES Act's eviction moratorium.

Respectfully submitted, this the 24th day of April, 2020.

VANGELA M. WADE, PRESIDENT/CEO
MISSISSIPPI CENTER FOR JUSTICE
BY: /s/ William B. Bedwell
WILLIAM B. BEDWELL (MSB NO. 108500)
STAFF ATTORNEY
MISSISSIPPI CENTER FOR JUSTICE
963 Division Street
Biloxi, MS 39530
228-273-1596 (ph)
228-435-7285 (fax)
wbedwell@mscenterforjustice.org